But here, too, Mr. Justice Frankfurter disagreed:

> "[W]e must consider the difference between . . . compulsion and the absence of compulsion when Congress acts as platonically as it did, in a wholly non-coercive way. Congress has not commanded that the railroads shall employ only those workers who are members of authorized unions. . . . When we speak of the Government 'acting' in permitting the union shop, the scope and force of what Congress has done must be heeded. There is not a trace of compulsion involved—no exercise of restriction by Congress on the freedom of the carriers and the unions. . . ." *Id.*, at 806–807.

And here, too, the Court's reading of the statute permitted it to avoid an unnecessary constitutional decision.[2]

Finally, by placing its decision on statutory grounds, the Court was able to leave open the question whether, assuming the Act intruded on protected First Amendment interests, the intrusion could be justified by the governmental interests asserted on its behalf. *Hanson* made it unnecessary to address this issue with respect to funds exacted solely for collective bargaining.[3] And by reading the Railway Labor Act to pro-

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[2] The Court today simply reads the separate opinion of Mr. Justice Douglas in *Street* as expressing the holding of the Court in *Hanson*. *Ante*, at 227 n. 23; see *ante*, at 222–223. While it may be possible to read *Hanson* this way, see n. 1, *supra*, it is certainly unnecessary to do so in light of the issues actually presented and resolved in that case. The Court offers no explanation of why Justices Frankfurter and Harlan, who believed that "the scope and force of what Congress has done must be heeded," 367 U. S., at 807, would acquiesce in the finding of governmental action in *Hanson* if that finding represented a definitive ruling that governmental authorization of a private union-shop agreement subjects the agreement itself to the full constraints of the First Amendment.

[3] Whether because no First Amendment interests were implicated, or because Congress had done nothing affirmatively to infringe such interests, or because any infringement of First Amendment interests was necessary to serve overriding governmental purposes, the Court was unanimous that the